

Levy Brands LLC and its affiliated operating companies, including TaliWood Cabinets, LLC. Terms and Conditions of Sale.

Applies to every quotation, order confirmation, invoice and shipment.

Version 1.1, effective September 30, 2026.

This page always shows the current version. The version that applies to a sale is the version in effect on the date Seller accepted the order, not the version shown here today. Each version stays available at its own permanent address and is never edited after publication.

This version: levybrands.com/terms/v1-1 Current version, always: levybrands.com/terms

These Terms govern every sale by Levy Brands LLC and its affiliated operating companies, including TaliWood Cabinets, LLC, and are incorporated into every quotation, order acknowledgment, order confirmation, invoice and delivery. The Seller on any given sale is the entity that issues the invoice for it. See Section 1.2.

1. ACCEPTANCE; ENTIRE AGREEMENT; WHO THE SELLER IS

1.1 These Terms govern every sale by Levy Brands LLC and by each of its subsidiaries and affiliated operating companies, including TaliWood Cabinets, LLC, a Delaware limited liability company with its principal place of business at 10450 Greens Crossing Blvd, Houston, TX 77038, and are incorporated into every quotation, order acknowledgment, order confirmation, invoice and delivery issued by any of them.

1.2 Who the Seller is. "Seller" means the single legal entity that issues the invoice for the sale in question. Where the invoice is issued by TaliWood Cabinets, LLC, TaliWood Cabinets, LLC is the Seller for that sale and is the only contracting party for it. Where the invoice is issued by Levy Brands LLC or by another subsidiary or affiliated operating company, that entity is the Seller for that sale and is the only contracting party for it. If a quotation or order confirmation names one entity and the invoice for the same goods names another, the entity named on the invoice is the Seller.

1.3 Brands and product lines are not the Seller. TaliWood, EZ Click, Plywood Source, Primo Ply and any other brand, product line, division, trade name or assumed name used by Seller is a name only. It is not a legal person, it is not the Seller, it does not contract, and no obligation is owed by it or to it. EZ Click is a product line of TaliWood Cabinets, LLC and is not a separate seller. Each sale is a separate contract with the one entity that issues the invoice for it. No entity is liable for the obligations of any other entity under these Terms. Buyer may not combine invoices issued by different entities for any purpose, may not apply a claim against one entity to a balance owed to another, and may not treat a course of dealing, waiver, credit or accommodation given by one entity as binding on another.

1.4 Seller's acceptance of any order is expressly conditioned on Buyer's assent to these Terms. Additional or different terms in Buyer's purchase order or other form are rejected and are not part of the contract. Buyer's acceptance of goods or payment of any invoice is assent to these Terms.

1.5 These Terms may be modified only by a writing signed by an officer of Seller. No salesperson, agent or representative may vary them, waive or extend any claim period, or make any warranty on Seller's behalf. Seller's acceptance of any late or noncompliant claim as an accommodation is not a waiver of these Terms and does not establish a course of dealing.

1.6 Product scope. The provisions of these Terms that refer to grading, published grade standards, origin or load-port inspection, mill grading or grading certificates, piece tallies, falldown, off-grade or mill-run goods, and further manufacturing such as cutting, ripping, sanding or laminating apply only to plywood, panel, veneer and lumber products. Cabinets and cabinet components are sold under the remaining provisions of these Terms, together with any terms and conditions of sale for cabinet products that Seller publishes, which control for those products where they differ from these Terms.

2. PRICE; DUTIES, TARIFFS, SURCHARGES

2.1 Prices are subject to increase for duties, tariffs, antidumping or countervailing duties, Section 232 or 301 actions, peak-season or other carrier surcharges, and currency or freight-rate changes imposed after the order date. Seller will notify Buyer and obtain approval to ship at a higher rate or off contract.

2.2 Prices exclude all taxes. Buyer is responsible for sales, use and similar taxes unless a valid exemption certificate is on file.

3. EACH SHIPMENT IS A SEPARATE INSTALLMENT

3.1 Each container, truckload or shipment is a separate installment under Tex. Bus. & Com. Code 2.612 and, for all purposes of inspection, acceptance, claim and remedy, a separate contract.

3.2 A nonconformity in one installment does not entitle Buyer to reject, revoke acceptance of, refuse delivery of, or cancel any other installment, any open order or any contract, and does not excuse payment for any other installment.

3.3 Seller may ship in installments and may allocate available product among customers in any commercially reasonable manner.

4. PRE-SHIPMENT INSPECTION; GRADING AT ORIGIN

4.1 Goods are graded at origin to the applicable published grade standard. Seller will provide the mill grading or load-port certificate on request.

4.2 Buyer may, at Buyer's cost and on reasonable notice, appoint an independent surveyor to inspect and sample any lot before shipment. Where Buyer approves a sample, that sample is the standard of conformity for that lot.

4.3 Where Buyer does not exercise the right in 4.2, the origin grading and quantity certificate is prima facie evidence of conformity and quantity, subject only to a timely claim under section 5.

5. INSPECTION AND CLAIM PERIODS (TIME-BARRED)

5.1 Inspection at unloading. Buyer must inspect each container or shipment at unloading, must note any shortage, visible damage or wrong product on the delivery receipt or bill of lading before signing, and must not refuse the shipment.

5.2 Written claim required. Every claim must be received in writing at claims@levybrands.com and must identify the invoice, container and lot numbers, state the specific nonconformity, and include a piece tally of the pieces claimed and photographs. Oral complaints, complaints to a salesperson or sales representative, and notations not delivered to the claims address are not notice and do not start or toll any period. Notice of a billing dispute under Section 5.15(a) is not a claim under this Section and does not start or toll any period in this Section, even if it is delivered to the claims address. A writing delivered to the claims address that disputes only an amount billed, and does not identify the pieces claimed as required above, is not a claim.

5.3 SELLER MUST RECEIVE THE WRITTEN CLAIM WITHIN FOURTEEN (14) DAYS AFTER UNLOADING OF THE CONTAINER OR SHIPMENT IN QUESTION, AND IN ALL EVENTS BEFORE ANY OF THE GOODS IN THAT SHIPMENT ARE RESOLD, DELIVERED ONWARD, CUT, RIPPED, SANDED, LAMINATED, FINISHED OR OTHERWISE FURTHER MANUFACTURED.

5.4 NO CLAIM OF ANY KIND MAY BE MADE MORE THAN ONE HUNDRED EIGHTY (180) DAYS AFTER ARRIVAL OF THE SHIPMENT, REGARDLESS OF WHEN THE GOODS WERE UNWRAPPED, DRAWN FROM INVENTORY, SOLD, OR THE ALLEGED NONCONFORMITY DISCOVERED.

5.5 THE PARTIES AGREE THESE PERIODS ARE REASONABLE AND ARE THE STANDARDS BY WHICH THE NOTICE OBLIGATION UNDER TEX. BUS. & COM. CODE 2.607(c)(1) IS MEASURED. IF A CLAIM IS NOT RECEIVED WITHIN THE APPLICABLE PERIOD, THE GOODS ARE CONCLUSIVELY DEEMED ACCEPTED AND CONFORMING, AND EVERY CLAIM, RIGHT AND REMEDY AS TO THOSE GOODS IS PERMANENTLY WAIVED, RELEASED AND EXTINGUISHED.

5.6 ACCEPTANCE OF GOODS IS FINAL. Buyer waives any right to revoke acceptance under Tex. Bus. & Com. Code 2.608 or any similar law, and waives any right to reject goods after the period in 5.3 has run. Buyer's exclusive route for any nonconformity is a timely claim under this section and the remedy in section 7.

5.7 A CLAIM IS LIMITED TO THE SPECIFIC PIECES ACTUALLY INSPECTED, TALLIED AND VERIFIED. NO FINDING ON ANY SAMPLE, BUNDLE, PALLET, CONTAINER OR SHIPMENT MAY BE EXTRAPOLATED, APPLIED OR PRESUMED AS TO ANY OTHER PIECE, BUNDLE, PALLET, CONTAINER OR SHIPMENT. Buyer bears the burden of tallying and proving each piece claimed.

5.8 Condition precedent: goods held intact. As a condition to any claim, Buyer must hold the entire claimed shipment intact, unmixed with other material, unprocessed, in original banding and wrapping where practicable, with all labels, lot codes and container markings preserved, and available for Seller's inspection in unaltered condition for thirty (30) days after the claim. Buyer may not return, alter, repair, dispose of or remanufacture claimed goods without Seller's written authorization. **FAILURE TO SATISFY THIS SECTION VOIDS THE CLAIM IN FULL AND BUYER REMAINS LIABLE FOR THE INVOICE.**

5.9 Binding reinspection. If the parties do not resolve a claim within fifteen (15) days, either party may require reinspection by an independent certified inspector agreed by the parties or, failing agreement, appointed by the applicable industry association. The inspector's determination of grade, conformity and quantity is final and binding on both parties. The party whose position is not sustained pays the inspection and travel cost. Neither party may litigate grade or conformity without first completing reinspection. This Section is a condition precedent only to an action by Buyer. It does not apply to, does not delay, and is not a condition precedent to any action by Seller for the price or to collect or enforce any amount owed, or to any application by Seller for a writ or other provisional remedy, and Buyer may not demand or invoke reinspection to postpone or defend against such an action.

5.10 Tolerances and de minimis. Goods conform if they meet the applicable published grade standard and its industry tolerances. No claim lies where the pieces verified as nonconforming are fewer than the greater of the published tolerance for the grade or three percent (3%) of the pieces in the shipment.

5.11 Storage, aging and rotation. Buyer must store goods indoors, dry, off the ground, on level dunnage, banded and protected from moisture, direct sun and uncontrolled humidity, and must rotate inventory first-in, first-out. **WARP, TWIST, CUP, BOW, DELAMINATION, MOISTURE-CONTENT, MOLD, STAIN AND ADHESIVE CLAIMS ON GOODS STORED OR HANDLED OUTSIDE THESE REQUIREMENTS, OR HELD MORE THAN ONE HUNDRED EIGHTY (180) DAYS AFTER ARRIVAL, ARE EXCLUDED.**

5.12 RESALE, ONWARD DELIVERY, CUTTING, RIPPING, SANDING, LAMINATING, FINISHING, FURTHER MANUFACTURING OR COMMINGLING OF ANY PIECE IS ACCEPTANCE OF THAT PIECE AND WAIVES ALL CLAIMS AS TO IT.

5.13 Carrier claims. Where risk of loss has passed, transit damage is a claim against the carrier, and Buyer is responsible for meeting the carrier's own deadlines, which are shorter than those above and may be as little as five (5) days from delivery for concealed damage under NMFC Item 300135-A, with nine (9) months to file a formal claim. Seller will provide reasonable documentation to support Buyer's carrier claim.

5.14 Limitations period.

(a) Buyer's actions. **ANY ACTION BY BUYER ARISING OUT OF OR RELATING TO A SALE, THE GOODS, OR THESE TERMS MUST BE COMMENCED WITHIN ONE (1) YEAR AFTER DELIVERY.** The parties agree that this is a reduction of the period of limitation by the original agreement of the parties under Tex. Bus. & Com. Code 2.725(a), that one year is a reasonable period, and that it applies to every claim, cause of action, counterclaim, cross-claim, defense in the nature of a claim, and third-party claim Buyer may assert, however characterized, including breach of contract, breach of warranty, nonconformity, shortage, delay, misrepresentation, negligence, and any statutory claim. If a one-year period is unenforceable under applicable law, the period is the shortest enforceable period and in no event more than two (2) years after delivery.

(b) Seller's actions are not shortened. Nothing in this Section, and nothing anywhere in these Terms, shortens the time for any action by Seller. Seller has the full period allowed by applicable law, and in no event less than four (4) years, to commence any action for the price of goods sold, or to collect or enforce any invoice, account, open or stated account, account balance, unpaid principal, finance charge, service charge, late charge, interest, returned-item fee, collection cost, court cost or attorney fee, or to enforce any credit agreement, guaranty, security agreement, security interest, letter of credit or other credit support, or to recover goods or proceeds. Every reduction of a limitations period in these Terms applies only to actions by Buyer.

(c) No reciprocity. Buyer acknowledges that the reduction in (a) is part of the allocation of risk reflected in the price under Section 7.5, that it is not conditioned on any reciprocal reduction, and that it is enforceable although it applies only to Buyer. Buyer waives any argument that the period in (a) must be applied to Seller, and any argument that (b) makes (a) unenforceable. If a court holds that (a) cannot apply to Buyer unless it also applies to Seller, then (a) is void and Buyer's claims are governed by the longest period that leaves (b) intact.

5.15 Billing disputes and goods claims are separate, with separate deadlines and separate addresses.

(a) Billing dispute. A dispute about the amount billed rather than the condition or conformity of the goods is a billing dispute. Billing disputes include price, price extension, unit of measure, quantity billed, freight, fuel and accessorial charges, tax, discount, rebate, program credit, credit memo, duplicate billing, misapplied payment, and application of a payment. A billing dispute is governed solely by the invoice-dispute provision of the credit agreement signed by Buyer and Seller, and notice of it must be received in writing within the period that credit agreement states, at the billing address stated in that credit agreement or, if none is stated, at accounting@taliwood.com. Where there is no signed credit agreement, notice of a billing dispute must be received in writing at that billing address within fifteen (15) days after the invoice date, after which the invoice is final and binding on Buyer.

(b) Goods claim. A claim that the goods are nonconforming, short, damaged, mis-shipped, off-grade, defective, incomplete, or otherwise not what was ordered is a goods claim. A goods claim is governed solely by this Section 5, must be received at the claims address in 5.2, and must meet the periods in 5.3 and 5.4 and the conditions in 5.7 and 5.8. An invoice-dispute period in a credit agreement does not create, extend, restart, replace or toll any period in this Section 5, and does not create any right to withhold payment.

(c) Each notice goes to its own address. A writing delivered to the billing address does not start or toll any period under this Section 5, and a writing delivered to the claims address does not start or toll any invoice-dispute period under a credit agreement. A single writing may raise both a billing dispute and a goods claim only if it separately states the amount disputed as a billing matter and separately identifies the pieces claimed as a goods matter with the information required by 5.2, and is received at both addresses within the shorter of the two applicable periods.

(d) The two periods do not interpret each other. The periods in this Section 5 and any invoice-dispute period in a credit agreement are independent, are measured from different events, and each is enforceable on its own terms. Buyer may not argue that the difference between them makes either one ambiguous, inapplicable, extended or unenforceable. Where the same facts could be presented as either, the shorter period controls and the requirements of 5.2, 5.7 and 5.8 apply.

(e) Payment is still due. Neither a billing dispute nor a goods claim entitles Buyer to withhold, offset, deduct or delay payment. Section 10.3 applies to both.

6. DELIVERY; TITLE; RISK OF LOSS

6.1 Delivery terms are as stated on the order confirmation. Title and risk of loss pass to Buyer at the point stated there.

6.2 Delivery and arrival dates are estimates. Seller is not liable for delay, and delay is not grounds to reject, cancel or claim.

7. EXCLUSIVE REMEDY; LIMITATION OF LIABILITY

7.1 Seller's election. **FOR ANY VALID AND TIMELY CLAIM, SELLER'S ENTIRE LIABILITY AND BUYER'S SOLE AND EXCLUSIVE REMEDY IS, AT SELLER'S SOLE OPTION: (a) REPLACEMENT OF THE SPECIFIC NONCONFORMING PIECES; (b) A GRADE ALLOWANCE OR PRICE ADJUSTMENT ON THOSE PIECES; (c) A CREDIT AGAINST BUYER'S ACCOUNT; OR (d) A REFUND OF THE NET PRICE PAID FOR THOSE PIECES.** The election is Seller's, not Buyer's. Buyer has no right to demand a refund where Seller elects replacement, allowance or credit, and no right to reject, return or revoke acceptance of conforming goods.

7.2 **SELLER'S LIABILITY FOR ANY CLAIM, AND IN THE AGGREGATE FOR ALL CLAIMS ARISING OUT OF A SHIPMENT, MAY NOT EXCEED THE NET INVOICE PRICE ACTUALLY PAID TO SELLER FOR THE SPECIFIC PIECES VERIFIED AS NONCONFORMING, LESS CREDITS ALREADY ISSUED. UNDER NO CIRCUMSTANCE DOES SELLER'S LIABILITY EXTEND TO GOODS NOT CLAIMED AND VERIFIED UNDER SECTION 5.**

7.3 **SELLER IS NOT LIABLE FOR ANY INCIDENTAL, CONSEQUENTIAL, SPECIAL, INDIRECT, PUNITIVE OR EXEMPLARY DAMAGES, INCLUDING LOST PROFITS, LOST SALES, LOSS OF USE, LABOR, FREIGHT, DEMURRAGE, STORAGE, DISPOSAL, DOWNTIME, REMANUFACTURING COST, REPLACEMENT MATERIAL SOURCED FROM A THIRD PARTY, PROJECT DELAY, LIQUIDATED DAMAGES, OR CLAIMS OR BACKCHARGES BY BUYER'S CUSTOMERS, EVEN IF SELLER WAS ADVISED OF THE POSSIBILITY.**

7.4 **THE EXCLUSIONS AND LIMITATIONS IN 7.2 AND 7.3 ARE INDEPENDENT OF THE EXCLUSIVE REMEDY IN 7.1 AND SURVIVE AND CONTINUE TO APPLY EVEN IF THE EXCLUSIVE REMEDY IS FOUND TO FAIL OF ITS ESSENTIAL PURPOSE.**

7.5 Allocation of risk. Buyer acknowledges that the price reflects this allocation of risk and that the price would be materially higher without it.

8. WARRANTIES

8.1 **EXCEPT FOR SELLER'S WRITTEN LIMITED WARRANTY, IF ANY, SELLER MAKES NO WARRANTY OF ANY KIND AND EXPRESSLY DISCLAIMS THE IMPLIED WARRANTIES OF MERCHANTABILITY AND OF FITNESS FOR A PARTICULAR PURPOSE AND ANY WARRANTY ARISING FROM COURSE OF DEALING OR USAGE OF TRADE.**

8.2 Wood is a natural material. Variation in color, grain, figure and mineral streak, and the way species age and change with light exposure, is inherent and is not a defect. Goods conform if they meet the applicable published grade standard and industry tolerance for the grade sold.

8.3 **GOODS SOLD AS FALLDOWN, OFF-GRADE, SHOP GRADE, MILL-RUN, SECONDS, B-STOCK, CLOSEOUT OR "AS IS" ARE SOLD AS IS, WITH ALL FAULTS,** and no claim may be made on them other than shortage or wrong product under 5.1.

8.4 Suitability is Buyer's. Buyer is solely responsible for determining that the goods are suitable for Buyer's and its customers' applications and for compliance with codes and specifications at the point of use. Samples, drawings and literature are illustrative and are not a warranty of any specific unit.

8.5 No downstream warranty. Seller makes no warranty to Buyer's customers, and Buyer may not extend, assign or pass through any warranty on Seller's behalf. Buyer indemnifies Seller against any warranty Buyer purports to make beyond these Terms.

9. RETURNS

9.1 No goods may be returned without a Seller-issued RMA number. Goods returned without an RMA will be refused.

9.2 Authorized returns of stock product must be requested within thirty (30) days of arrival, must be unused, unprocessed and in original banding, and are subject to a restocking charge of twenty-five percent (25%) plus return freight, which Buyer prepays.

9.3 Custom, special-order, made-to-order, cut-to-size and custom-finished goods are not returnable.

9.4 A return authorized as an accommodation is not an admission that goods were nonconforming and does not extend or restart any period in section 5.

10. PAYMENT; NO SETOFF

10.1 Payment terms. Payment is due net 30 days from the invoice date, unless different payment terms are stated in a credit agreement signed by Buyer and by an officer of Seller, in which case that credit agreement controls. Payment is measured from the invoice date. It is not measured from the date of shipment, delivery, receipt, inspection, installation, completion of a job, or the date Buyer is paid by its own customer or by any builder, contractor or other person.

10.2 A document does not change the signed terms. Payment terms, due dates, discount terms or late-charge terms printed or displayed on an invoice, statement, packing list, order confirmation, quotation, portal screen, emailed summary, or any other document generated by Seller or by Buyer do not add to, vary, extend or waive the payment terms in a signed credit agreement or in Section 10.1. Where such a document shows terms more favorable to Buyer than the signed terms, it is an error, it does not extend the due date, it does not waive any late charge, and Buyer may not rely on it. Only a writing signed by an officer of Seller changes payment terms. No salesperson, sales representative, agent, customer-service employee or credit employee may change them. Where there is no signed credit agreement, Section 10.1 applies unless Seller has agreed in writing to prepayment, cash in advance, letter of credit or other terms for that order.

Past-due balances accrue service charges at the lesser of 1.5% per month or the maximum lawful rate, or at the rate stated in a signed credit agreement if that agreement states a different rate.

10.3 No setoff or chargeback. **A PENDING, DISPUTED OR UNRESOLVED CLAIM DOES NOT ENTITLE BUYER TO WITHHOLD, OFFSET, DEDUCT OR DELAY PAYMENT OF THE INVOICE IN QUESTION OR OF ANY OTHER INVOICE. BUYER WAIVES ANY RIGHT OF SETOFF, DEDUCTION OR RECOUPMENT.** Any approved credit is applied to Buyer's account, not deducted unilaterally by Buyer.

10.4 Seller may suspend shipments, withhold credit and require prepayment or security while any balance is past due, without liability.

11. FORCE MAJEURE

Seller is not liable for delay or failure to perform caused by events beyond its reasonable control, including acts of government, tariff or trade action, port, vessel or customs delay, carrier or equipment shortage, labor disruption, fire, flood, weather, epidemic, war or raw-material shortage.

12. GOVERNING LAW; VENUE; MISCELLANEOUS

12.1 **TEXAS LAW GOVERNS**, excluding its conflict-of-laws rules and the U.N. Convention on Contracts for the International Sale of Goods.

12.2 **EXCLUSIVE VENUE IS THE STATE OR FEDERAL COURTS SITTING IN HARRIS COUNTY, TEXAS,** and the parties consent to personal jurisdiction there.

12.3 If any provision is held unenforceable, it is modified to the minimum extent needed to be enforceable and the remainder stays in force.

12.4 Sections 1.2, 1.3, 3, 5, 7, 8, 10.3 and 12 survive delivery, acceptance, payment and any termination or cancellation. Section 5.14(b) survives without limitation.

12.5 Buyer may not assign the contract without Seller's written consent.

13. VERSIONS OF THESE TERMS

13.1 Versioning. Each version of these Terms carries a version number and an effective date, and is published at its own permanent address. Seller does not edit a published version. A change is made by publishing a new version with a new number and a new effective date.

13.2 Which version applies. The version that governs a sale is the version in effect on the date Seller accepted the order for that sale. A later version does not apply to an order Seller accepted before that version's effective date, and does not change any claim period, deadline, remedy or limitation that had already begun to run.

13.3 Availability. Seller keeps every prior version available at its permanent address and will provide a copy of any version on written request.

13.4 Version history.

Version 1.1, effective September 30, 2026, levybrands.com/terms/v1-1.

Changes: Seller defined as the invoicing entity and extended to affiliated operating companies including TaliWood Cabinets, LLC (1.1 to 1.3); limitations period split so the one-year reduction applies to Buyer only (5.14); reinspection made a condition precedent for Buyer only (5.9); payment terms set at net 30 from invoice date subject to a signed credit agreement (10.1, 10.2); billing disputes and goods claims separated with separate addresses and deadlines (5.2, 5.15); version rules added (this Section 13).

Product scope clarified for plywood, panel, veneer and lumber products and for cabinets and cabinet components (1.6).

Version 1.0, effective August 25, 2026, levybrands.com/terms/v1-0. Original version.